

26NWLC28451 26NWLC28451

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-09-04

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Case Number: 26NWLC28451 Hearing Date: September 4, 2026 Dept: Y

26NWLC28451: TOYOTA MOTOR CREDIT CORPORATION vs JORGE BANDA

Tentative Ruling:

The Court has read and considered the moving papers filed by Plaintiff Toyota Motor Credit Corporation ("Plaintiff"), and the supporting attorney declaration. Plaintiff's Motion to Set Aside and Vacate Dismissal("Motion") has been served on Defendant Jorge Banda and no opposition has been filed.

In its Motion, Plaintiff requests to vacate and set aside the dismissal entered on May 28, 2026 and restore the case to active status. Pursuant to Code of Civil Procedure § 473(b), the Court has authority to relieve, on such terms as are just, a party or party's legal representative from a judgment taken against the party because of mistake, inadvertence, surprise and/or excusable neglect. Here, Plaintiff's counsel has presented evidence that the dismissal was entered through Plaintiff's counsel's mistake.

Based on the declaration submitted by Plaintiff, the Court GRANTS Plaintiff's Motion to Set Aside and Vacate Dismissal. This case is returned to active status.

Plaintiff to give notice.